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CLERK, U.S. DISTRICT COURT
SOUTHERN DISTRICT OF CALIF.

BY [Signature]
DEPUTY

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF CALIFORNIA

May 1984 Grand Jury

12	UNITED STATES OF AMERICA,	)	Criminal Case No. '841022E
13	Plaintiff,	)	<u>I N D I C T M E N T</u>
14	v.	)	Title 18, U.S.C., Secs. 371 and
15	HILMA MARIE WITTE,	)	510(a)(1) - Conspiracy to Forge
16	ERIC AUGUST WITTE,	)	a United States Treasury Check;
17	Defendants.	)	Title 18, U.S.C., Sec. 510(a)(1) -
18		)	Forging a United States Treasury
19		)	Check; Title 18, U.S.C., Secs.
20		)	371 and 510(a)(2) - Conspiracy
21		)	to Utter a Forged United States
22		)	Treasury Check; Title 18, U.S.C.,
23		)	Sec. 510(a)(2) - Uttering a
24		)	Forged United States Treasury
25		)	Check; Title 18, U.S.C., Sec. 2 -
26		)	Aiding and Abetting

The grand jury charges:

COUNT ONE

Beginning at a date unknown to the grand jury and continuing up to and including November 7, 1984, within the

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PH:ch:San Diego County
11/15/83

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1 Southern District of California, and elsewhere, defendants
2 HILMA MARIE WITTE and ERIC AUGUST WITTE did knowingly and
3 willfully combine, conspire and agree with each other, and
4 with divers other persons known and unknown to the grand
5 jury, to knowingly and intentionally commit offenses against
6 the United States, to wit, to falsely make and forge endorse-
7 ments and signatures on United States treasury checks with
8 intent to defraud; in violation of Title 18, United States
9 Code, Sections 371 and 510(a)(1).

10 OVERT ACTS

11 In pursuance of said conspiracy, and to further the
12 objects thereof, the following overt acts, among others, were
13 committed within the Southern District of California, and
14 elsewhere:

15 1. In or about December, 1983, in Trail Creek, Indiana,
16 defendant HILMA MARIE WITTE and a juvenile not herein
17 named discussed killing Elaine Witte in order to
18 obtain both money presently possessed by her and
19 monies to be received by her in the future.

20 2. In or about January, 1984, in Trail Creek, Indiana,
21 defendant HILMA MARIE WITTE caused the juvenile to
22 shoot Elaine Witte in the chest with a crossbow as
23 she slept at her residence located at 320 Johnson
24 Road, Trail Creek, Indiana.

25 3. In or about January, 1984, in Trail Creek, Indiana,
26 defendants HILMA MARIE WITTE, ERIC AUGUST WITTE and
27 others dismembered the body of Elaine Witte and stored
28 the parts in a freezer.

1 4. On various dates between January and August, 1984,
2 in the State of Indiana, defendants HILMA MARIE WITTE,
3 ERIC AUGUST WITTE and others disposed of parts of Elaine
4 Witte's body.

5 5. On various dates between January and August, 1984,
6 in the State of Indiana, defendant HILMA MARIE WITTE
7 forged the name of Elaine Witte on United States treasury
8 checks.

9 6. On various dates between January and August, 1984,
10 in the State of Indiana, defendant HILMA MARIE WITTE
11 presented the United States treasury checks for payment.

12 7. Sometime during the summer of 1984, defendants
13 HILMA MARIE WITTE and ERIC AUGUST WITTE transported
14 inside a garbage bag contained in a cooler, what re-
15 mained of Elaine Witte's body from the State of
16 Indiana to San Diego in a mobile home.

17 8. On or about July 28, 1984, defendant ERIC AUGUST
18 WITTE rented Space No. 162 at a mobile home park lo-
19 cated at 4141 San Ysidro Boulevard, San Diego, California.

20 9. On or about August 4, 1984, defendant ERIC AUGUST
21 WITTE rented Post Office Box No. 5277 in Chula Vista,
22 California under the name E. Witte.

23 10. In or about September, 1984, defendants HILMA MARIE
24 WITTE and ERIC AUGUST WITTE disposed of what was left
25 of Elaine Witte's remains in the Otay landfill, San
26 Diego, California.

27 11. In or about October, 1984, defendants HILMA MARIE
28 WITTE and ERIC AUGUST WITTE contacted various banks in

1 the Southern District of California to ascertain which
2 bank would allow them to take a signature card home.

3 12. On or about October 17, 1984, defendant HILMA
4 MARIE WITTE forged Elaine Witte's name on a signature
5 card from the Pacific Commerce Bank, 1196 Third Avenue,
6 Chula Vista, California.

7 13. On or about October 17, 1984, defendants HILMA
8 MARIE WITTE and ERIC AUGUST WITTE opened a checking
9 account at the Pacific Commerce Bank in the names of
10 Elaine Witte, Hilma Marie Witte and Eric Witte.

11 14. On or about October 18, 1984, defendant HILMA
12 MARIE WITTE forged Elaine Witte's name on United States
13 treasury check no. 11,014,426, Symbol 3118, dated
14 October 3, 1984, in the amount of \$472.00.

15 15. On or about October 18, 1984, defendant HILMA
16 MARIE WITTE went into the Pacific Commerce Bank and
17 presented the United States treasury check referred
18 to in Overt Act No. 14 for payment.

19 16. On or about October 19, 1984, defendant HILMA
20 MARIE WITTE forged Elaine Witte's name on United States
21 treasury check No. 44,189,171, Symbol 2081, dated
22 October 1, 1984, in the amount of \$195.57.

23 17. On or about October 19, 1984, defendant HILMA
24 MARIE WITTE went into the Pacific Commerce Bank and
25 presented the United States treasury check referred
26 to in Overt Act No. 16 for payment.

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1 18. In or about October, 1984, defendants HILMA MARIE
2 WITTE and ERIC AUGUST WITTE split the proceeds from the
3 forged Treasury checks negotiated at the Pacific
4 Commerce Bank.

5 19. On or about November 7, 1984, defendant HILMA
6 MARIE WITTE forged Elaine Witte's name on United States
7 treasury check No. 44,324,629, Symbol 2081, dated
8 November 1, 1984, in the amount of \$195.57.

9 20. On or about November 7, 1984, defendant HILMA
10 MARIE WITTE forged Elaine Witte's name on United States
11 treasury check No. 66,489,834, Symbol 3118, dated
12 November 2, 1984, in the amount of \$472.00

13 21. On or about November 7, 1984, defendants ERIC AUGUST
14 WITTE and HILMA MARIE WITTE went to the Pacific Commerce
15 Bank.

16 22. On or about November 7, 1984, at the Pacific
17 Commerce Bank, defendant HILMA MARIE WITTE presented
18 the United States treasury checks referred to in Overt Acts
19 19 and 20 for payment.

20 23. In or about November, 1984, defendants HILMA
21 MARIE WITTE and ERIC AUGUST WITTE made arrangements to
22 leave San Diego, California.

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COUNT TWO

On or about October 8, 1984, within the Southern District of California, defendants HILMA MARIE WITTE and ERIC AUGUST WITTE, with intent to defraud, did falsely make and forge an endorsement and signature on a United States Treasury check, No. 11,014,426, Symbol 3118, dated October 3, 1984, having a face value of \$472.00; all in violation of Title 18, United States Code, Sections 510(a)(1) and 2.

COUNT THREE

On or about October 19, 1984, within the Southern District of California, defendants HILMA MARIE WITTE and ERIC AUGUST WITTE, with intent to defraud, did falsely make and forge an endorsement and signature on a United States Treasury check, No. 44,189,171, Symbol 2081, dated October 1, 1984, having a face value of \$195.57; all in violation of Title 18, United States Code, Sections 510(a)(1) and 2.

COUNT FOUR

On or about November 7, 1984, within the Southern District of California, defendants HILMA MARIE WITTE and ERIC AUGUST WITTE, with intent to defraud, did falsely make and forge endorsements and signatures on a United States Treasury checks, No. 44,324,629, Symbol 2081, dated November 1, 1984, having face values of \$195.57; and No. 66,489,834, Symbol 3118, dated November 2, 1984, having a face value in the amount of \$472.00; all in violation of Title 18, United States Code, Sections 510(a)(1) and 2.

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COUNT FIVE

Beginning at a date unknown to the grand jury and continuing up to and including November 7, 1984, within the Southern District of California, and elsewhere, defendants HILMA MARIE WITTE and ERIC AUGUST WITTE did knowingly and willfully combine, conspire and agree with each other, and divers other persons known and unknown to the grand jury, to knowingly and intentionally defraud, pass, utter and publish, and attempt to pass, utter and publish, United States treasury checks bearing falsely made and forged endorsements and signatures, an offense against the United States in violation of Title 18, United States Code, Sections 371 and 510(a)(2).

OVERT ACTS

In pursuance of said conspiracy, and to further the objects thereof, the following overt acts, among others, were committed within the Southern District of California, and elsewhere:

1. In or about December, 1983, in Trail Creek, Indiana, defendant HILMA MARIE WITTE and a juvenile not herein named discussed killing Elaine Witte in order to obtain both money presently possessed by her and monies to be received by her in the future.

2. In or about January, 1984, in Trail Creek, Indiana, defendant HILMA MARIE WITTE caused the juvenile to shoot Elaine Witte in the chest with a crossbow as

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1 she slept at her residence located at 320 Johnson
2 Road, Trail Creek, Indiana.

3 3. In or about January, 1984, in Trail Creek, Indiana,
4 defendants HILMA MARIE WITTE, ERIC AUGUST WITTE and
5 others dismembered the body of Elaine Witte and stored
6 the parts in a freezer.

7 4. On various dates between January and August, 1984,
8 in the State of Indiana, defendants HILMA MARIE WITTE,
9 ERIC AUGUST WITTE and others disposed of parts of Elaine
10 Witte's body.

11 5. On various dates between January and August, 1984,
12 in the State of Indiana, defendant HILMA MARIE WITTE
13 forged the name of Elaine Witte on United States treasury
14 checks.

15 6. On various dates between January and August, 1984,
16 in the State of Indiana, defendant HILMA MARIE WITTE
17 presented the United States treasury checks for payment.

18 7. Sometime during the summer of 1984, defendants
19 HILMA MARIE WITTE and ERIC AUGUST WITTE transported
20 inside a garbage bag contained in a cooler, what re-
21 mained of Elaine Witte's body from the State of
22 Indiana to San Diego in a mobile home.

23 8. On or about July 28, 1984, defendant ERIC AUGUST
24 WITTE rented Space No. 162 at a mobile home park lo-
25 cated at 4141 San Ysidro Boulevard, San Diego, California.

26 9. On or about August 4, 1984, defendant ERIC AUGUST
27 WITTE rented Post Office Box No. 5277 in Chula Vista,
28 California under the name E. Witte.

1 10. In or about September, 1984, defendants HILMA MARIE
2 WITTE and ERIC AUGUST WITTE disposed of what was left
3 of Elaine Witte's remains in the Otay landfill, San
4 Diego, California.

5 11. In or about October, 1984, defendants HILMA MARIE
6 WITTE and ERIC AUGUST WITTE contacted various banks in
7 the Southern District of California to ascertain which
8 bank would allow them to take a signature card home.

9 12. On or about October 17, 1984, defendant HILMA
10 MARIE WITTE forged Elaine Witte's name on a signature
11 card from the Pacific Commerce Bank, 1196 Third Avenue,
12 Chula Vista, California.

13 13. On or about October 17, 1984, defendants HILMA
14 MARIE WITTE and ERIC AUGUST WITTE opened a checking
15 account at the Pacific Commerce Bank in the names of
16 Elaine Witte, Hilma Marie Witte and Eric Witte.

17 14. On or about October 18, 1984, defendant HILMA
18 MARIE WITTE forged Elaine Witte's name on United States
19 treasury check no. 11,014,426, Symbol 3118, dated
20 October 3, 1984, in the amount of \$472.00.

21 15. On or about October 18, 1984, defendant HILMA
22 MARIE WITTE went into the Pacific Commerce Bank and
23 presented the United States treasury check referred
24 to in Overt Act No. 14 for payment.

25 16. On or about October 19, 1984, defendant HILMA
26 MARIE WITTE forged Elaine Witte's name on United States
27 treasury check No. 44,189,171, Symbol 2081, dated
28 October 1, 1984, in the amount of \$195.57.

1 17. On or about October 19, 1984, defendant HILMA
2 MARIE WITTE went into the Pacific Commerce Bank and
3 presented the United States treasury check referred
4 to in Overt Act No. 16 for payment.

5 18. In or about October, 1984, defendants HILMA MARIE
6 WITTE and ERIC AUGUST WITTE split the proceeds from the
7 forged Treasury checks negotiated at the Pacific
8 Commerce Bank.

9 19. On or about November 7, 1984, defendant HILMA
10 MARIE WITTE forged Elaine Witte's name on United States
11 treasury check No. 44,324,629, Symbol 2081, dated
12 November 1, 1984, in the amount of \$195.57.

13 20. On or about November 7, 1984, defendant HILMA
14 MARIE WITTE forged Elaine Witte's name on United States
15 treasury check No. 66,489,834, Symbol 3118, dated
16 November 2, 1984, in the amount of \$472.00

17 21. On or about November 7, 1984, defendants ERIC AUGUST
18 WITTE and HILMA MARIE WITTE went to the Pacific Commerce
19 Bank.

20 22. On or about November 7, 1984, at the Pacific
21 Commerce Bank, defendant HILMA MARIE WITTE presented
22 the United States treasury checks referred to in Overt Acts
23 19 and 20 for payment.

24 23. In or about November, 1984, defendants HILMA
25 MARIE WITTE and ERIC AUGUST WITTE made arrangements to
26 leave San Diego, California.

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COUNT SIX

On or about October 18, 1984, within the Southern District of California, defendants HILMA MARIE WITTE and ERIC AUGUST WITTE, with intent to defraud, did pass, utter and publish a United States Treasury check, No. 11,014,426, Symbol 3118, dated October 3, 1984, having a face value of \$472.00, and bearing a falsely made and forged endorsement and signature; all in violation of Title 18, United States Code, Sections 510(a)(2) and 2.

COUNT SEVEN

On or about October 19, 1984, within the Southern District of California, defendants HILMA MARIE WITTE and ERIC AUGUST WITTE, with intent to defraud, did pass, utter and publish a United States Treasury check, No. 44,189,171, Symbol 2081, dated October 1, 1984, having a face value of \$195.57, and bearing a falsely made and forged endorsement and signature; all in violation of Title 18, United States Code, Sections 510(a)(2) and 2.

COUNT EIGHT

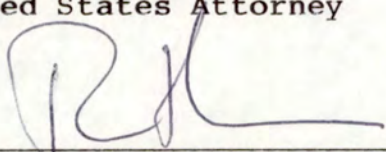
On or about November 7, 1984, within the Southern District of California, defendants HILMA MARIE WITTE and ERIC AUGUST WITTE, with intent to defraud, did pass, utter and publish United States Treasury checks, No. 44,324,629, Symbol 2081, dated November 1, 1984, having a face value of \$195.57; and No. 66,489,834, Symbol 3118, dated November 2, 1984, having a face value of \$472.00, and bearing falsely made and forged endorsements and signatures; all in violation of Title 18, United States Code, Sections 510(a)(2) and 2.

DATED: November 16, 1984.

A TRUE BILL:

Foreperson

PETER K. NUNEZ
United States Attorney

By: 
PHILLIP L. HALPERN
Assistant U.S. Attorney